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Gov. Newsom Signs Legislation to Help Holocaust Survivors Recover Art Stolen by Nazis

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LOS ANGELES, California, Sept. 17 -- Gov. Gavin Newsom, D-California, issued the following news release on Sept. 16, 2024:

At the Holocaust Museum LA, Governor Gavin Newsom signed Assembly Bill (AB) 2867, legislation from Assemblymember Jesse Gabriel (Encino) that will help California residents recover art and other personal property stolen during the Holocaust or as a result of other acts of political persecution.

The bill was introduced following a recent decision by the Ninth Circuit Court of Appeals that has allowed a Spanish museum to retain possession of a famous Impressionist masterpiece stolen by the Nazis from the Cassirer family during the Holocaust. AB 2867 mandates that California law must apply in lawsuits involving the theft of art or other personal property looted during the Holocaust or due to other acts of political persecution.

"For survivors of the Holocaust and their families, the fight to take back ownership of art and other personal items stolen by the Nazis continues to traumatize those who have already gone through the unimaginable. It is both a moral and legal imperative that these valuable and sentimental pieces be returned to their rightful owners, and I am proud to strengthen California's laws to help secure justice for families."

- Governor Gavin Newsom

"Governor Newsom's signature on this bill is a victory for morality and justice and will ensure that California continues to stand on the right side of history. AB 2867 will empower Holocaust survivors and other victims of persecution to reclaim stolen property and sends a clear message to those who refuse to return stolen art. I applaud Governor Newsom for his long standing leadership in standing up for Holocaust survivors and thank him for his partnership on this important new law."

- Assemblymember Jesse Gabriel

Today's event

Governor Newsom was joined at the bill signing by Assemblymember Gabriel, his wife Rachel Rosner, and their son Ethan; David Cassirer and the family's attorney Sam Dubbin; Guy Lipa, grandson of Holocaust survivors and Board Chair at Holocaust Museum LA; Daniel Gryczman, grandson of Holocaust Survivors and Board Vice Chair of LA Jewish Federation; and Beth Kean, CEO of Holocaust Museum LA.

David Cassirer: "California has drawn a clear line under AB 2867, enabling the family to finally recover our impressionist masterpiece and protecting all stolen art victims, including other Holocaust victims and their families in the future."

Sam Dubbin, Cassirer family attorney: "The people of California have now made it clear that they are on the side of the rightful owners of stolen art and will not reward theft and trafficking. For families in California, AB 2867 will go a long way to eliminate the incentive from governments, museums, and collectors to distort and deny the true horrors of the Holocaust in order to hold onto Nazi loot. This new law is essential for truth, history, and justice -- for the Cassirer family and the future cases as well. This law sends a clear message from the people of California to all museums and governments -- including the government of Spain -- that museums should have no right to hold stolen art."

Existing California law

AB 2867 builds on prior California law, which has always aimed to assist California residents in recovering stolen property, including property stolen during the Holocaust. Attorney General Rob Bonta and former Attorney General Kamala Harris both argued that California law should apply to cases like that involving the Cassirer family, who were forced to surrender a famous impressionist masterpiece by Camille Pissarro to the Nazis at the beginning of World War II. Despite such arguments, the Ninth Circuit recently found that Spanish law should apply in this case, effectively allowing a Spanish museum to retain ownership of the stolen painting.

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